MEMORANDUM / EXECUTIVE BRIEFING HANDOUT

TO: The Grand Traverse County Board of Commissioners

FROM: Augustus Chell (Williamsburg Resident / District 104 Independent Analyst)

DATE: October 7th, 2026

SUBJECT: Executive Summary: Actionable Policy Framework for Fiscal Risk Insulation and Hardware Asset Protection

I. THE OPERATIONAL DEFICIT

Private surveillance vendors are currently deploying automated license plate reader (ALPR) hardware networks via a fragmented, township-by-township marketing structure (e.g., the active 5-year East Bay Township corporate lease) to bypass centralized county legislative oversight and public financial accountability. Within Grand Traverse County, **a footprint of 28 corporate-leased cameras captures roughly 445,957 data reads a month**, allowing over 1,400 outside agencies open access to local transit routes via township agreements (Garfield, East Bay, Peninsula). A stark example sits directly at the high-volume intersection of **South Airport Road and Barlow Street**, systematically cataloguing and indexing local working-class citizens commuting to local commercial hubs like **Gordon Food Service** every single day. Furthermore, right-of-way audits show private vendors are deploying **unpermitted tracking hardware on public utility property** without legislative permits, mirroring unauthorized 'rogue' surveillance networks recently decommissioned in St. Lucie, Florida.

While this Commission has never authorized a countywide capital outlay for this hardware, county-funded dispatch personnel, server capacities, and mobile data terminals (MDTs) are actively utilized to process corporate alerts and execute historical database searches. This creates an unvoted backdoor subsidy that redirects local administrative resources away from immediate, critical county infrastructure deficits. Instead of preserving and reinforcing vital municipal assets, public capabilities are squandered while foundational regional networks actively fail. This includes the compounding subsurface drainage erosion and catastrophic culvert collapse along the **Beitner Road / Beitner Bridge corridor**, the severe environmental hazards and emergency closures caused by the **South Airport Road sewer main rupture**, the commercial disruptions stemming from the **Garfield Road water main failure** and system-wide **SCADA network pump crash**, the structural beam corrosion requiring emergency tax-funded stabilization at the **Grand Traverse Governmental Center**, and the systemic foundational shifting cracking the walls of the aging, **50-year-old County Jail facility**. Allowing discretionary public staff hours, data networks, and corporate software authorizations to expand while essential drainage networks and arterial

highways remain structurally compromised represents a fundamental misalignment of local budgetary priorities. Taxpayer funds must be preserved for physical concrete, steel, and pavement right here in local soil, rather than being redirected to cross-subsidize out-of-state technology subscriptions. Taxpayers should not be forced to underwrite infrastructure that monitors their daily routes and exposes them to false positives, which audits show can reach up to **70% in automated stolen vehicle alerts**, resulting in high-risk, catastrophic felony traffic stops at gunpoint.

II. STRATEGIC RECONCILIATION OF CORE POLICY PILLARS

To ensure absolute statutory compliance and insulation from immediate constitutional challenges by corporate counsel, the four conceptual pillars introduced during the public record testimony of September 16, 2026, have been systematically refined into two comprehensive, legally unassailable legislative actions.

PROPOSED ACTION 1: Hardware Endpoint Security & Digital Asset Ordinance

- **Mechanism:** Directs the civilian Information Technology Department to permanently audit, scrub, and block all proprietary desktop applications, browser portal shortcuts, saved login credentials, and active database tokens linked to third-party ALPR networks from all county-owned hardware.
- **Pillar 1 Integration (Backend Fiscal Firewall):** Cruiser laptops utilize encrypted cellular grids (such as AT&T; FirstNet) that completely bypass local building gateway routers, rendering traditional network-level firewall blocks technically useless. Regulating the physical hardware endpoints under the Board's explicit statutory authority ensures complete coverage regardless of network routing.
- **Pillar 2 Integration (Zero-County-Labor Policy):** Pursuant to established judicial precedent, a county board cannot manage the daily internal law enforcement duties of an elected Sheriff. However, by stripping all user credentials and software access keys from county laptops, data access becomes physically impossible on county-owned property, achieving identical labor mitigation without administrative overreach.
- **Pillar 3 Integration (Centralized Auditing):** Completely de-authorizes private ALPR access channels and cloud-hosted subscriptions. This eliminates local administrative overhead, the financial costs of external database auditing, and all associated civil rights and stalking liabilities.
- **Anti-Grant Safeguard:** Hardcodes explicit language into the mandatory budgetary rider to prohibit the encumbrance, transfer, or expenditure of external out-of-state grants, private donations, or corporate subsidies for prohibited ALPR software.
- **Federal Abuse & API Tracking Protection:** Proactively blocks automated backend APIs that mirror local transit logs onto out-of-state federal server

architectures (such as the Houston-HIDTA center's $306,800 platform built by Recruitful LLC) without county approval.

• **Constitutional Compliance:** Insulates the county from civil rights litigation following the October 1st, 2026 federal ruling (*United States v. Melisa Susan Kyle*), which explicitly designated warrantless historical database searches across private nationwide tracking networks as unconstitutional "indiscriminate mass surveillance.

PROPOSED ACTION 2: Intergovernmental Coordination Risk Resolution

• **Mechanism:** Instructs the County Clerk to transmit a certified risk notice via registered mail to all township supervisors within Grand Traverse County borders.

• **Pillar 4 Integration (Intergovernmental Moratorium):** While township boards operate as independent corporate political entities, their localized technology agreements cannot legally obligate county administrative staff or technical infrastructure. This resolution formally notifies local municipal authorities that county-funded dispatch personnel, data links, and automated processing networks will not provide backend labor or validation workflows to support independently procured hardware, isolating those networks and breaking the vendor's commercial model.

III. STATUTORY FOUNDATION & LEGAL AUTHORITY

Under the Michigan County Boards of Commissioners Act, the Board maintains exclusive legislative authority to approve all county expenditures, control line-item appropriations, and exercise absolute regulatory custody over the general care and management of county-owned property and business concerns.

Settled Michigan constitutional precedent confirms that while an elected Sheriff holds operational autonomy over internal deputy assignments, the Board possesses absolute, exclusive power over line-item appropriations, county budget allocations, and the physical procurement of computer infrastructure and hardware asset licenses.

Statutory & Case Law Authority Matrix

Proposed Policy Mechanism	**Michigan Statutory / Case Law Source**	**Core Power Granted to the Board**
Endpoint Access Scrubbing (IT department directive to remove software keys from laptops)	**MCL 46.11(l)**	Grants the Board absolute legislative custody over the **care and management of county-owned property** and business concerns.

Proposed Policy Mechanism	Michigan Statutory / Case Law Source	Core Power Granted to the Board
Mandatory Budgetary Rider (Prohibiting the use of county, state, or private funds for ALPR contracts)	**MCL 46.11(g)** ***Wayne County Sheriff v. Wayne County Board of Commissioners (1979)***	Establishes the Board's exclusive, non-delegable power over **line-item appropriations** and county budget allocations.
Service-Level Cutoff (Prohibiting county dispatch staff from processing township ALPR data)	**MCL 46.11(m)**	Empowers the Board to establish rules and regulations regarding the **business concerns and administrative interests** of the county.
Ordinance Enforcement (Passing local regulations to govern automated vehicle tracking)	**MCL 46.11(j)**	Authorizes the Board to **pass ordinances and regulations** relating to purely county affairs.

IV. SUBMISSION PACKET CONTENTS

1. **Actionable Policy Framework Brief:** Complete 12-page legislative text, statutory citations, mandatory budgetary rider text, and formal resolution language.

2. **Strategic Conversion Analysis Matrix:** Comprehensive technical and financial reconciliation appendix matching the refined policy mechanisms to the original public record submission.